CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, November 13, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, November 13, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew A. Pigatt, Vice Mayor Chris Davis, Commissioner Sherelean Bass, Commissioner Alvin Burke and Commissioner Joseph L. Kelley. Also in attendance were: City Manager John E. Pate, City Attorney Burnadette Norris-Weeks, and City Clerk Joanna Flores.

3. INVOCATION:

The invocation was delivered by Commissioner Sherelean Bass.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

The City Commission acknowledged the Opa-locka Hurricanes 8U Football team for making it to the Super Bowl and becoming champions in the National Youth Football League.

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: Pulled 13-3 and 13-4 (Mayor Pigatt); pulled 13-5 (Commissioner Kelley).

7. APPROVAL OF AGENDA:

It was moved by Commissioner Burke, seconded by Commissioner Kelley to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke Yes

Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – September 25, 2019

It was moved by Commissioner Bass, seconded by Vice Mayor Davis to approve the minutes from the Regular Commission Meeting of September 25, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Special Commission Meeting Minutes – September 30, 2019

It was moved by Commissioner Burke, seconded by Vice Mayor Davis to approve the minutes from the Special Commission Meeting of September 30, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Regular Commission Meeting Minutes – October 23, 2019

It was moved by Commissioner Bass, seconded by Commissioner Kelley to approve the minutes from the Regular Commission Meeting of October 23, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Special Commission Meeting Minutes – October 30, 2019

It was moved by Commissioner Bass, seconded by Vice Mayor Davis to approve the minutes

from the Special Commission Meeting of October 30, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara Jordan's Office, District I, said he does not have any reports at this time, but will take any concerns to Commissioner Jordan.

Commissioner Kelley asked for the status on the Jackson North Hospital as the area looks terrible.

Mr. Gardner said he will look into the matter.

Commissioner Kelley said the light on 37th Avenue by Amazon is still an ongoing challenge and his vehicle was almost hit; he asked that something be done to correct the traffic situation.

Mr. Gardner said he will pass it on to the traffic division of the county.

10. PUBLIC PRESENTATION:

11. CITIZENS' INPUT:

Eric Redmon, 2766 NW 131st Street, Opa-locka, FL, thanked the manager for meeting with him recently and proceeded to say that there are two sides to the City pertaining to Code Enforcement matters. One belongs to Randolph Aikens and the other belongs to Wilma Wilcox and it is a problem because Ms. Wilcox has to handle all matters. This is wrong because there are violations all over the place in the area. He applauded the police and the manager for handling the recent incident in the news. He said he has been asking for increases and new cars for the police and has only heard promises and it is not right; something should be done.

Audrey Dominguez, 1147 Jann Avenue, Opa-locka, FL, said she went to pay her bill on yesterday and not only was the bill high, there was no one to accept the payment because the customer service person was on break. She asked the manager to help with the situation.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, asked the commission to look into getting out of the financial situation because it was done in the past. She hopes that the City still has a legislative person in Tallahassee working on its behalf because the City needs it. On Burlington Street and Service Road there are plenty of potholes and her mother's car was damaged because of this. She said she hopes the recipient of the educational scholarship received the funds and it is not just legislation. Also, the planes heading toward Opa-locka Airport are flying too low and someone needs to look into the matter.

Vice Mayor Davis said the City is working to address the billing situation and asked the residents to bear with them as they are in a transitional period with the county for billing matters.

City Manager pate agreed with the vice mayor.

Commissioner Kelley asked if there is communication in place to address the potholes that are eroded when it rains because residents should be able to reach out to someone for these matters.

Mayor Pigatt thanked the residents for bringing matters to the attention of the commission and assured them that the City is working to expedite the issues.

City Manager Pate agreed with the mayor and informed the residents that he will soon have a succinct plan to address all matters pertaining to the City.

12. ACTION ITEMS:

13-3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING ISSUANCE OF A REQUEST FOR PROPOSALS ("RFP") FOR JANITORIAL SERVICES FOR 780 FISHERMAN STREET; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.
Sponsored by City Manager

The above resolution was read by Attorney Norris-Weeks.

It was moved by Vice Mayor Davis, seconded by Commissioner Kelley for discussion.

Mayor Pigatt asked the manager why they are receiving a draft of the RFP instead of a final document and if it is a budgeted expense.

City Manager Pate said the document has to go to the state and be approved before it can be final and it is a budgeted item.

Mayor Pigatt said he hoped it will be advertised on all platforms so they can have a diverse amount of individuals who apply.

Commissioner Bass asked if there is a current janitorial service for city hall.

City Manager Pate said, "Yes."

There being no further discussion, the motion on the resolution passed by a 5-0.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

13-4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AWARDING A ONE THOUSAND DOLLAR ($1,000.00)

SCHOLARSHIP TO GIA COGDELL THROUGH THE EDUCATIONAL SCHOLARSHIP PROGRAM, AS SET FORTH IN EXHIBIT "A"; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Commission*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis for discussion.

Commissioner Kelley said the funds that were awarded were sent to the schools and the recipients are notified.

Mayor Pigatt said he pulled the item so the public will know the City pushed for the program and two recipients were chosen, however the state did not approve the funds in the new budget. The City will continue to look for ways in which they can bring back the program in the future.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

13-5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ESTABLISHING AN ABANDONED PROPERTY REGISTRATION PROCESS WITHIN THE CITY AS SET FORTH IN EXHIBIT "A"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Vice Mayor Davis*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley asked the sponsor for clarity on the item.

Vice Mayor Davis said similar cities have the program currently in place and it is successful. It requires owners to register properties they own that are vacant. This will allow the City to address public safety and compliance issues as they arise.

Commissioner Kelley said that he supports the intent, but he wants to know how the City will maintain compliance of these properties once the process is put in place.

City Attorney Norris-Weeks said the property should be reported once it is deemed vacant. Every twelve months from that point, it will need to be renewed so the City is aware of the vacancies. The intent will achieve the purpose of creating a process to decrease the number of abandoned property.

Mayor Pigatt said he hopes moving forward that when ideas are posed, they include the policies

and costs associated with implementation so the commission and the citizens have a clear understanding.

City Manager Pate said he will work with the clerk to develop a process for writing up the agenda packet.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

13. CONSENT AGENDA:

13-1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ADOPTING THE CITY OF OPA-LOCKA'S 2020 LEGISLATIVE PRIORITY LIST, ATTACHED HERETO AS EXHIBIT "A"; AUTHORIZING THE CITY MANAGER TO TAKE NECESSARY ACTION TO CARRY OUT THE AIMS OF THIS RESOLUTION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

13-2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OFOPA-LOCKA, FLORIDA, PERMITTING THE CITY OF OPA-LOCKA COMMISSIONERS TO MAKE INQUIRIES OF CITY STAFF FOR THE SOLE PURPOSE OF GOOD FAITH INQUIRIES AND INVESTIGATIONS PURSUANT TO ARTICLE IV, SECTION 4.2 (B) OF THE CITY OF OPA-LOCKA CHARTER; REPEALING RESOLUTION NO. 18-9512 AND ANY OTHER RESOLUTION IN CONFLICT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolutions were read by Attorney Norris-Weeks.

It was moved by Vice Mayor Davis, seconded by Commissioner Kelley to pass the resolutions.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

14. NEW ITEMS:

15. PLANNING & ZONING:

A. PUBLIC HEARINGS:

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING VARIOUS SECTIONS OF CHAPTER 21, ENTITLED "WATER, SEWER AND STORMWATER UTILITIES"; ADOPTING CERTAIN RULES AND REGULATIONS OF THE MIAMI-DADE COUNTY WATER AND SEWER DEPARTMENT; SPECIFICALLY AMENDING SECTION 21-85 ENTITLED "WHEN BILLS DUE AND PAYABLE, DISCONNECTING SERVICE FOR NON-PAYMENT" TO DECREASE THE TIME FOR A DETERMINATION OF DELINQUENCY FORM THIRTY DAYS TO TWENT-ONE DAYS; CLARIFYING SECTION 21-85 AND 21-97 ENTITLED "REGULATIONS GOVERNING MIAMI-DADE BILLING FOR THE CITY OF OPA-LOCKA" TO ENSURE THAT CERTAIN RULES AND REGULATIONS OF THE MIAMI-DADE WATER AND SEWER DEPARTMENT SHALL APPLY TO THE CITY OF OPA-LOCKA; CLARIFYING THE ADOPTION OF ARTICLE VI, SECTION 32-91 THROUGH SECTION 32-101 OF THE MIAMI-DADE COUNTY CODE OF ORDINANCES; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing.

There being no further persons to speak, the public hearing was closed.

It was moved by Vice Mayor Davis, seconded by Commissioner Burke for discussion.

Mayor Pigatt asked David Ritchie from Miami-Dade County to come and provide information about the billing.

Mr. Ritchie said the City of Opa-locka is adopting the rules and regulations of Miami-Dade County as to how they handle all of their customers; the majority of the rules are the same as the City, except the City did not comply with its rules consistently. He cannot provide any exact calculations because he does not have the data in front of him.

City Manager Pate said they have been working to correct all of the issues for the billing and will continue working with the county to be on the same page.

There being no discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes

Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING CHAPTER 13 OF THE CITY OF OPA-LOCKA'S CODE OF ORDINANCE, ENTITLED "LICENSES AND BUSINESS REGULATIONS", ARTICLE XIV ENTITLED "LANDLORD PERMIT", SPECIFICALLY AMENDING SECTION, 1313-274 TO ADD NEW SECTION (3) REQUIRING ALL APARTMENT BUILDINGS WITH FORTY UNITS OR MORE TO BE REQUIRED TO HAVE AN ONSITE PROPERTY MANAGER AND ARMED SECURITY SERVICES; AMENDING SECTION 13-278(5)(b) TO REQUIRE PERMIT APPLICANTS WITH FORTY (40) OR MORE APARTMENT UNITS TO COMPLETE A SEPARATE FORM TO BE CREATED BY CITY; PROVIDING FOR ADOPTION OF REPRESENTATIONS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR INCLUSION IN THE CODE; PROVIDING FOR AN EFFECTIVE DATE (first reading/public hearing held on October 9, 2019). *Sponsored by Commissioner Kelley and Co-sponsored by Vice Mayor Davis*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing.

Dorothy Johnson, 13724 NW 2nd Place, Opa-locka, FL, said a lot of legislation was removed in 2015 so the laws are no longer there. She commended the commission and said the item is well needed to keep the citizens safe.

There being no further persons to speak, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Commissioner Bass for discussion.

Vice Mayor Davis said he would like for the item to pass tonight and not be deferred until a later date.

Commissioner Burke asked how the item will be enforced because it has been known that the property owners will come in and fill out the paperwork and still will not provide armed security.

City Attorney Norris-Weeks said it will prevent the landlord from obtaining a certificate of occupancy if they do not get the permit. The City will have the obligation to provide staff to enforce it.

Commissioner Kelley said he agrees with Commissioner Burke that the item will need to be enforced in order to keep the residents safe. He knows it will have an impact on smaller complexes, but it is necessary. A lot of the units have subsidies for security so they can absorb the costs.

Vice Mayor Davis said the City has a serious public safety issue with the apartment complexes

and it needs to be addressed.

City Manager Pate said they will be prepared to enforce the item starting January 1, 2020.

Mayor Pigatt said he is concerned that the City is going to catch flack for this in the future and the owners are going to come with a lot of issues.

Commissioner Kelley said the item came from staff who suggested that something be done about the recent shootings and he decided to sponsor it.

Mayor Pigatt asked the manager to provide any and all correspondences from staff relating to the item.

There being no discussion, the motion on the ordinance passed by a 4-1 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	No

2. AN ORDINANCE OF THE CITY COMMISSSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE CITY OF OPA-LOCKA CODE OF ORDINANCES, ARTICLE VIII, ENTITLED "STREET VENDORS", SECTION 13-160, ENTITLED "LOUD NOISES AND SPEAKING DEVICES" TO PROHIBIT ICE CREAM TRUCK VENDORS FROM OPERATING IN RESIDENTIAL ZONING DISTRICTS BEYOND TEN O'CLOCK PM FOR THE PURPOSE OF VENDING, SELLING OR SERVING GOODS, WARES OR MERCHANDISE; PROVIDING FOR ADOPTION OF REPRESENTATIONS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR INCLUSION IN THE CODE; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Kelley*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing.

Eric Redmon, 2766 NW 131st Street, Villa Francine, Opa-locka, FL, said he is concerned with the portion relating to the ice cream trucks. He suggested that the trucks stop running at 9:00 p.m. on school nights and then 10:00 p.m. on the weekends.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, suggested that the Police Department be called to enforce the time for ice cream trucks. She agreed with the time suggested by the last speaker and said she supports the item.

There being no further persons to speak, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis for discussion.

Commissioner Kelley said he wants to make sure the time is captured for all vendors.

Commissioner Bass said she believes 9:00 p.m. is appropriate and 10:00 p.m. is too late for children to be outside. She brought it up at the last meeting and still believes in that time.

Vice Mayor Davis asked why that time was being chosen and not earlier.

Commissioner Kelley said he did not want other vendors to be shut down too early as they will not be able to earn monies.

Commissioner Burke asked if food trucks will be banned at 9:00 p.m. and not be able to sell anything because of the noise if so, he does not agree with it.

Mayor Pigatt said the item relates to mobile vendors going into residential districts and selling goods. Food trucks in commercial areas will not be affected.

A motion was made to amend the time from 10:00 p.m. to 9:00 p.m.

It was moved by Vice Mayor Davis, seconded by Commissioner Bass to amend the item.

Commissioner Kelley said he could have accepted the motion as a friendly amendment so it does not need an additional vote.

There being no further discussion, the motion on the amendment passed by a 4-1 vote.

Commissioner Burke	No
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

There being no discussion, the motion on the ordinance passed by a 4-1 vote.

Commissioner Burke	No
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

C. RESOLUTIONS/PUBLIC HEARINGS:

17. CITY MANAGER'S REPORT:

City Manager Pate said he has been working on the finances for the last few weeks in order to make a presentation to the oversight board at the next Financial Emergency Meeting. There is an ongoing investigation in regards to the incident involving the officer at Cordova Apartments.

Commissioner Burke asked the manager if there is any truth that Police Officers are using their personal vehicles for work.

City Manager Pate said he does not know if this is happening and will provide a report to the commission in twenty four hours.

Commissioner Burke said employees need clear policy and procedures updated to reflect what is expected of them to avoid potential liabilities.

City Manager Pate said he is working with staff and multiple outside agencies to address concerns regarding policy and procedures.

Mayor Pigatt asked that a report be made available to everyone regarding the 5 Year recovery Plan and the financial audits.

18. OFFICIAL BOARD REPORTS:

Mayor Pigatt said he is concerned that they are not receiving consistent board reports. He asked who is assigned to ensuring that the boards meet.

City Manager Pate said his office assigns board clerks to serve at the meetings, but they meet as needed. He is currently working with the clerk's office to get a feel of how the City operates its boards. He also mentioned the Historic Environmental Preservation Board and stated that if appointments are not made and the board becomes active, it will be taken over by the county so he is working on that as well. He asked that appointments are made by the commission before the next meeting so he can provide a response to the county.

Mayor Pigatt said this is a concern for him and the preservation of the architecture in the City; he hopes the vacancies will be filled and they will start to meet.

19. MAYOR/COMMISSION REPORT:

Commissioner Kelley announced the food distribution program that will be held on Friday at 10:00 a.m. at the pavilion at Sherbondy Park. He will announce what else he is working on at a later time.

Commissioner Burke invited all Veterans to an event at the Opa-locka Coast Guard Station from 10:00 a.m. to 12:30 p.m. that will include a job fair.

Commissioner Bass announced A Night of Thanksgiving on Friday evening, November 22, 2019 and invited everyone to attend.

Mayor Pigatt spoke on the state legislature looking to bring forth a bill to dissolve a City in the event of financial emergencies and receivership. He asked the manager's office to put together a comprehensive response to JLAC regarding the concerns they made.

City Manager Pate said he is working currently on providing a response to the commission and the state as it relates to the "99 Findings", the audits, and the state of the City's finances among other issues.

Mayor Pigatt asked the commission to consider cancelling the second meetings for November and December as this has been done historically in observance of the holidays.

A motion was made to cancel the meetings as suggested.

It was moved by Vice Mayor Davis, seconded by Commissioner Kelley to cancel the meetings.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Commissioner Burke, seconded by Vice Mayor Davis to adjourn the meeting at 9:23 p.m.

MAYOR

ATTEST:

CITY CLERK